

CASL Screening Procedure — Outbound Email

DRAFT FOR REVIEW BY COUNSEL — NOT LEGAL ADVICE. This is the operating procedure that keeps outbound email inside CASL. It is the highest-exposure process in the business and is written to be audited.

1. Why this document exists

Provider sends commercial electronic messages ("CEMs") from computer systems located in Canada. **Canada's Anti-Spam Legislation applies on that basis alone, regardless of where the recipient is.** CASL is consent-based rather than opt-out. Administrative monetary penalties reach **CAD \$10 million per violation** for a corporation, directors and officers may be personally liable, and CASL carries a private right of action.

Under CASL the **sender bears the burden of proving** consent or the application of an exemption. This procedure exists to make that proof routinely available.

2. The basis we rely on: the foreign-state exemption

Paragraph 3(f) of the *Electronic Commerce Protection Regulations* exempts a CEM from CASL's consent requirement where:

1 the sender **reasonably believes** the message will be accessed in a listed

foreign state — the **United States** is listed; and

1 the message **conforms to the law of that state** addressing conduct

substantially similar to CASL — for the United States, **CAN-SPAM**.

Provider's cold outbound is therefore **United States only**, and every message complies with CAN-SPAM.

[COUNSEL] Please confirm this analysis for our fact pattern, and confirm that the country screen in §3 is a sufficient basis for the "reasonable belief" in limb 1.

3. Country screen — the controlling control

3.1 A recipient enters a cold sequence **only** where the company has been positively identified as United States-based.

3.2 Identification is from **company records** — registered address, head office, or the address published on the company's own site — and is recorded with its source. **A top-level domain is not sufficient evidence** of location and must not be used on its own.

3.3 Where location cannot be positively established, the recipient **does not enter a cold sequence**. Ambiguity resolves against sending.

3.4 The screen is applied at list build and re-verified before each send.

3.5 Canadian recipients are **excluded from cold outbound entirely**. See §5.

3.6 The screen is implemented in the list pipeline as a hard gate that blocks the send, not as a checklist step. A recipient without a recorded, verified country cannot be added to a sequence.

4. CAN-SPAM conformity — every message, no exceptions

- Accurate "From", "Reply-To", and routing information; the sending domain is owned by Provider.
- A subject line that accurately reflects the message.
- Identification of Provider as the sender, with a valid **physical postal address** (the Manitoba registered office).
- A clear, working unsubscribe mechanism.
- Opt-outs honoured within **10 business days**; in practice, immediately.
- A global suppression list checked before every send.
- No harvested addresses; no dictionary attacks.

5. Canadian recipients

5.1 Canadian recipients are excluded from cold outbound by default.

5.2 If Provider later chooses to approach Canadian prospects, each message must rest on **express or implied consent** established and logged *per recipient* before sending. Implied consent by conspicuous publication requires **all** of:

- the recipient's electronic address is **conspicuously published**;
- the publication is **not accompanied by a statement** that the person does not wish to receive unsolicited commercial messages; and
- the message is **relevant to that person's business, role, or functions**.

5.3 Implied consent expires and must be tracked: **two years** from the end of a business relationship or transaction; **six months** from an inquiry. Expired consent is treated as no consent.

5.4 Every Canadian CEM carries full CASL sender identification and an unsubscribe mechanism honoured within 10 business days.

6. Record keeping — the proof obligation

For **every** recipient contacted, Provider records and retains for [3] **years**:

Field	Example
Recipient address and role	ops@example.com, VP Marketing
Company and verified country	Example Inc., United States
Country evidence and source	Head office address, example.com/about, retrieved [date]

Field	Example
Basis relied on	ECPR 3(f) foreign-state exemption
Address source and date collected	Company website, [date]
Messages sent	Campaign, template version, timestamps
Opt-out status and date honoured	—

Records are exportable on request, so a regulator inquiry is answered from a report rather than a reconstruction.

7. Additional belt-and-braces position

Provider's list is built from **conspicuously published business addresses**, and every message is **relevant to the recipient's role** by construction — it contains measurement of that recipient's own company. Provider therefore expects to satisfy CASL implied consent on the merits **in addition to** the foreign-state exemption, at negligible extra cost.

[COUNSEL] If you prefer, we can rely on this as the primary basis rather than the fallback. Please advise which posture you want documented.

8. Escalation and review

8.1 Any complaint alleging a CASL or CAN-SPAM breach is escalated to the principal **within one business day**, the relevant sequence is paused, and the recipient's record is produced.

8.2 Sending stops entirely if the spam complaint rate exceeds **0.10%**.

8.3 This procedure is reviewed **quarterly**, and immediately on any change to CASL, the Regulations, the listed-state schedule, CAN-SPAM, or the opening of a new target geography. **No new geography is opened until this procedure has been extended to cover it and reviewed.**